

on to the BryoLogyx securityholders, which are stated in the Allocation Schedule.”). The Supporting Declaration indicates that this information constitutes sensitive non-public financial and business information whose general disclosure would raise a substantial probability of prejudice to the Vaxanix Parties. *Id.* For ease of reference, this information is referred to as the “Sensitive Non-Public Information.”

The Court finds that there exists an overriding interest that overcomes the right of public access to the specific Sensitive Non-Public Information addressed in the Supporting Declaration. The Court further finds that this overriding interest supports sealing the Sensitive Non-Public Information and there exists a substantial probability that the overriding interest will be prejudiced if the Sensitive Non-Public Information is not sealed. Subject to resolution of the issue discussed below, the Court further finds that the proposed sealing of the Sensitive Non-Public Information is narrowly tailored and that there is no less restrictive means exist to achieve the overriding interest.

However, the Court must confirm what specific portion(s) of the Record to be Sealed contain such Sensitive Non-Public Information.

The Supporting Declaration refers to the “appendix to the Merger Agreement, titled ‘Allocation Schedule,..’” but does not cite page and line numbers or other clear designations of the specific portions constituting the Sensitive Non-Public Information.

Moreover, there appears to be a disconnect because the Vaxanix Parties indicate that “Petitioner Curia has submitted the Merger Agreement in its entirety with its motion to amend the judgment.” See Supporting Declaration, ¶12.

As noted above, however, the Record to be Sealed appears to have already had various portions redacted, as it was filed on November 4, 2025. It is not clear to the Court whether the Vaxanix Parties concur that those redactions, in fact, redact the portions containing the Sensitive Non-Public Information.

Most of those redactions appear on the “Allocation Schedule” portions (pages 283, 284 and 286 of the Tilghman Declaration and a part of Exhibit A-6). Another redaction appears elsewhere in the document (page 285 of the overall filing pagination). Accordingly, it would appear that the Sensitive Non-Public Information has been redacted out of the Record to be Sealed.

As set forth below, the parties are to appear to confirm that the portions redacted from the Record to be Sealed properly redact the Sensitive Non-Public Information.

Disposition

The Court finds and orders as follows:

1. Parties to Appear.

18. 9:00 AM CASE NUMBER: N25-2269
CASE NAME: PETITION OF: ELAINE LAVAN
***HEARING ON MOTION IN RE: PRELIMINARY INJUNCTION**

FILED BY:

TENTATIVE RULING:

Petitioner Elaine La Van's motion for a preliminary injunction is **denied**.

Petitioner Elaine La Van, individually and doing business as Softtech, filed a petition against the California State Approving Agency for Veterans Education (CSAAVE) for administrative and traditional writ of mandates and for declaratory relief on November 20, 2025. The claims in the petition focus on CSAAVE's handling of Petitioner's applications from 2023 to 2025. Petitioner alleges many violations by CSAAVE, including that CSAAVE imposed requirements without proper justification, manufactured reasons to reject or disapprove of Petitioner's applications, and did not give Petitioner an appeal of its decisions.

Petitioner filed this motion for a preliminary injunction on November 21, 2025. Petitioner is seeking a preliminary injunction that enjoins CSAAVE from (1) enforcing and implementing the administrative decision disapproving Softtech's application for approval to enroll veteran students; (2) taking any further adverse action against Softtech based on the grounds asserted in the proceedings at issue in this case, including but not limited to allegations regarding the "Shopping Sheet," "placement rates," or "independent study"; and (3) refusing to process enrollments for eligible veteran students at Softtech in the same manner as was done prior to the adverse administrative actions at issue in this case. (Proposed Order, attached as pages 71-73 of the petition.)

CSAAVE raises several procedural arguments. They argue that Petitioner filed this action in the wrong county. If CSAAVE believes this action was filed in the wrong county, they are free to bring a motion to have this case removed to another county. (See Code Civ. Proc. § 401.)

Next, CSAAVE argues that there is a 60-day statute of limitations period, citing to *Kao v. Department of Corrections & Rehabilitation* (2016) 244 Cal.App.4th 1326. Kao states that the 60-day rule is "a judicially created rule used presumptively by appellate courts to assess the timeliness of nonstatutory writ petitions seeking discretionary review of trial court decisions. Its purpose is to keep the time period for seeking writ review on par with the time period for seeking appellate review, absent extraordinary circumstances. [Citations.]" (*Kao v. Department of Corrections & Rehabilitation* (2016) 244 Cal.App.4th 1326, 1333.) The Court is not convinced that there is a 60-day statute of limitations for this case.

The Court turns to the merits of Petitioner's motion. "[I]n order to obtain injunctive relief the plaintiff must ordinarily show that the defendant's wrongful acts threaten to cause *irreparable* injuries, ones that cannot be adequately compensated in damages." (*Intel Corp. v. Hamidi* (2003) 30 Cal.4th 1342, 1352; Code of Civil Procedure section 526(a).)

"In deciding whether to issue a preliminary injunction, a court must weigh two 'interrelated' factors: (1) the likelihood that the moving party will ultimately prevail on the merits and (2) the relative interim harm to the parties from issuance or nonissuance of the injunction. [Citation.]... The trial court's determination must be guided by a 'mix' of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. [Citation.]... A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim. [Citation.]" (*Butt v. State of California* (1992) 4 Cal.4th 668, 677-678.)

Petitioner has the burden of showing that all elements necessary to support issuance of a preliminary injunction are met. (See *O'Connell v. Superior Court* (2006) 141 Cal. App. 4th 1452,

1481.)

As an initial matter, the Court notes that Petitioner argues this injunction would maintain the status quo. “Injunctions may be either mandatory, in that they compel a party to take an action, or prohibitory, in that they attempt to maintain the status quo by restraining a party from taking action. [Citation.] “““A preliminary mandatory injunction is rarely granted, and is subject to stricter review on appeal.””” [Citation.]” (*Itv Gurney Holding v. Gurney* (2017) 18 Cal.App.5th 22, 29.)

Petitioner states she has been approved by CSAAVE from 2010 to 2025 and has been running her school for 25 years. (La Van dec. ¶2.) However, the documents attached to the petition show that CSAAVE suspended programs for new enrollments on September 22, 2023, and disapproved of all programs on December 6, 2023. (Pet. Ex. B and D.) CSAAVE’s Assistant Deputy Secretary Iannello states that Petitioner was approved, however, that approval expired on December 31, 2019. (Iannello dec. ¶9-10.) Iannello also states that Petitioner did not submit another application until June 28, 2023, which was returned. (Iannello dec. ¶11.) Petitioner has not provided evidence to dispute these statements by Iannello.

Here, Petitioner has not had an approved application for five years and has not disapproved for two years. While not dispositive in this case, the Court finds that Petitioner’s requested injunctive relief is not to maintain the status quo, but instead would be a mandatory injunction.

Petitioner alleges that she is entitled to a hearing under 38 U.S.C. section 3690, subd. (c) and 38 C.F.R. section 21.4259, subd. (b)(2)(ii).

38 U.S.C. § 3690(c) states in part that “the records and accounts of educational institutions pertaining to eligible veterans or eligible persons who received educational assistance under this chapter... shall be available for examination by duly authorized representatives of the Government.” Section 3690(c) does not discuss the right to a hearing. Further, the Court did not find language providing for a hearing elsewhere in section 3690.

38 C.F.R. section 21.4259 (b) states that upon suspension or disapproval, the State approving agency or Secretary will notify the educational institution. Subsection (b)(2)(ii) does not provide the right to a hearing nor did the Court find language providing for a hearing elsewhere in section 21.4259.

The sections cited by Petitioner do not show that she was entitled to a hearing from CSAAVE.

Petitioner also argues that CSAAVE’s disapproval was arbitrary, capricious and exceeds CSAAVE’s statutory authority. In order for Petitioner to prevail on this theory she needs to show that her application should have been approved and further, the CSAAVE’s requests for more information or updated forms was an abuse of discretion. Petitioner has provided copies of communications with CSAAVE. Petitioner has not shown, however, that she met all the requirements nor has she shown that CSAAVE’s actions were an abuse of discretion.

The Court finds that Petitioner has not shown a probability of prevailing on the merits and as such she is not entitled to a preliminary injunction.

Since Petitioner has not shown a probability of prevailing on the merits, the Court need not consider the balance of harms. (*Butt v. State of California* (1992) 4 Cal.4th at 678 [A trial court may not grant a preliminary injunction, regardless of the balance of interim harm, unless there is some possibility that the plaintiff would ultimately prevail on the merits of the claim.].)

19. 10:00 AM CASE NUMBER: MSC20-02024

CASE NAME: WINANS VS CITY OF BRENTWOOD

JURY TRIAL

FILED BY:

TENTATIVE RULING:

Parties to Appear.

20. 11:00 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

***TRIAL SETTING CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to Appear.

21. 11:00 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

***FURTHER CASE MANAGEMENT CONFERENCE TRIAL SETTING CONFERENCE**

FILED BY:

TENTATIVE RULING:

Parties to Appear.

22. 11:01 AM CASE NUMBER: MSC19-02076

CASE NAME: MAUREEN MBADIKE-OBIORA, MD VS. CENTRAL EAST BAY IPA, MEDICAL GROUP INC

**HEARING ON ORDER TO SHOW CAUSE IN RE: WHY PLAINTIFF HAS NOT PAID HER SHARE OF THE
DISCOVERY REFEREE FEES.**

FILED BY:

TENTATIVE RULING:

Parties to Appear.